

HIGH COURT OF JUDICATURE AT ALLAHABAD

SPECIAL APPEAL DEFECTIVE No. - 395 of 2022

Daya Nand SharmaAppellant

Through :- Mr. Shri Krishna Mishra and Mr. Sharad Chand Rai,
Advocates

v/s

State of U.P. and othersRespondents

Through :- Mr. Pankaj Kumar Tyagi, Advocate for Respondent
No. 1 and Mr. Abhishek Srivastava, Advocate for
Respondent Nos. 2 to 6

CORAM : HON'BLE RAJESH BINDAL, CHIEF JUSTICE

HON'BLE J.J. MUNIR, JUDGE

ORDER

1. On request of learned counsel for Respondent No. 1, adjourned to September 2, 2022.
2. To be taken up as fresh along with Writ - C No. 17882 of 2022.

(J.J. Munir)
Judge

(Rajesh Bindal)
Chief Justice

Allahabad
01.09.2022
I. Batabyal/NSC

HIGH COURT OF JUDICATURE AT ALLAHABAD

SPECIAL APPEAL DEFECTIVE No. - 395 of 2022

Daya Nand SharmaAppellant

Through :- Mr. Shri Krishna Mishra and Mr. Sharad Chand Rai,
Advocates

v/s

State of U.P. and othersRespondents

Through :- Ms. Archana Tyagi, Advocate for Mr. Pankaj Kumar
Tyagi and Mr. Abhishek Srivastava, Advocates

CORAM : HON'BLE RAJESH BINDAL, CHIEF JUSTICE

HON'BLE J.J. MUNIR, JUDGE

ORDER

1. Let the present appeal be listed before a Bench of which one of us J.J. Munir, J., is not a member.
2. Keeping in view the urgency involved in the present appeal, let the same be listed today in the afternoon session before the Division Bench headed by Manoj Misra, J.

(J.J. Munir)
Judge

(Rajesh Bindal)
Chief Justice

Allahabad
02.09.2022
NSC/I Batabyal

Court No. - 29

Case :- SPECIAL APPEAL DEFECTIVE No. - 395 of 2022

Appellant :- Daya Nand Sharma

Respondent :- State Of U.P. And 6 Others

Counsel for Appellant :- Shri Krishna Mishra,Ajay Mishra

Counsel for Respondent :- C.S.C.,Abhishek Srivastava,Pankaj

Kumar Tyagi

Hon'ble Manoj Misra,J.

Hon'ble Mohd. Azhar Husain Idrisi,J.

1. This matter has been placed before us pursuant to the order dated 02.09.2022 of a Division Bench headed by the Chief Justice. By the said order it was directed that the matter be placed before a Division Bench headed by one of us (Manoj Misra, J.) as an urgent matter on 02.09.2022 itself. However, as this Bench was not available in the afternoon session of 02.09.2022, this matter has been placed before us today as an urgent matter.

2. We have heard Sri S.K. Mishra for the appellant; Sri P.K. Ganguli for the respondent no.1; Sri Ravindra Tripathi, holding brief of Sri Abhishek Srivastava for the respondents 5 and 6; and Miss Archana Tyagi, holding brief of Sri Pankaj Tyagi for the respondent no.7.

3. This intra-court appeal has been filed against the order dated 29.08.2022 passed by a Single Judge Bench in Contempt Application (Civil) No. 4248 of 2022 arising from a writ court order dated 29.06.2022 passed in Writ C No. 17882 of 2022.

4. Before we address the order impugned in this appeal, to have a

clear understanding of the controversy involved in the present appeal, it would be apposite to notice the contextual back ground in which this intra-court appeal has been filed.

5. Writ C No. 17882 of 2022 was filed by seventh respondent (Amit Kumar) by impleading seven persons as opposite parties. The current appellant was opposite party no.7 in that writ petition. In that writ petition, the writ petitioner (i.e. respondent no.7 herein) had challenged an order dated 30.05.2022 by which the prayer of respondent no.7 (Amit Kumar) for grant of an electricity connection was not accepted for want of no objection certificate from the house owner i.e. Daya Nand Sharma son of Har Lal Sharma, the present appellant. By order dated 29.06.2022, Writ C No. 17882 of 2022 was disposed off. The order dated 29.06.2022 passed in Writ C No. 17882 of 2022 is extracted below:-

"Heard learned counsel for the petitioner and Sri Abhishek Srivastava learned Advocate has put in appearance on behalf of respondent nos. 2 to 6.

The petitioner herein seeks to challenge the communication dated 30.5.2022 issued by the Executive Engineer, Electricity Urban Distribution Division-VII, 33/11 KV Sub Station, Sector-62 C, NOIDA namely respondent no. 5 whereby the petitioner who is a tenant of the premises in question has been asked to get the consent of the landlord to grant him electricity connection.

It is submitted by the learned counsel for the petitioner that the owner/landlord of the premises in question has refused to give consent and further objected to grant of electricity connection in the name of the petitioner.

On the affidavit submitted by the owner/landlord of the premises in question that no electricity

connection be granted without his consent, the letter dated 30.5.2022 has been issued.

Sri Abhishek Srivastava learned Advocate has put in appearance on behalf of the respondent nos. 2 to 6. On a query made by the Court, he agrees that in case of refusal to give consent by the landlord, the electricity connection in the name of the tenant can be granted by complying the provisions of Clause 4.4 of the Electricity Supply Code, 2005, wherein an indemnity bond as per Annexure 4.2 is to be submitted by the applicant namely the petitioner herein.

Learned counsel for the petitioner, at this stage, submits that the petitioner is ready to furnish the indemnity bond.

For the aforesaid, without entering into the merits of the claim of the petitioner, the present writ petition is being disposed of with the observation that if the petitioner complies with the condition of Clause 4.4 of the Electricity Supply Code, 2005 in furnishing the indemnity bond as per Annexure 4.2 and fulfils all other necessary formalities, the respondent no. 5 namely the Executive Engineer, Electricity Urban Distribution Division-VII, 33/11 KV Sub Station, Sector-62 C, NOIDA shall pass an appropriate order for grant of electricity connection in the name of the petitioner ignoring the objection of the landlord. "

6. It is the case of the respondent no.7 that when, pursuant to the order dated 29.06.2022, the electricity department granted electricity connection and a lineman came to install the electricity connection the opposite parties did not allow him to do so and, therefore, they are guilty of wilful disobedience of writ court's order dated 29.06.2022. As a result, complaining about the resistance offered by the opposite

parties including Daya Nand Sharma (appellant herein), Contempt Application (Civil) No. 4248 of 2022 was filed by impleading the current appellant as contemnor/opposite party no.1 and officers of the electricity department as well as officers of the police as opposite party nos. 2 to 7.

7. In these contempt proceedings, after hearing learned counsel appearing for the parties, in light of certain decisions that owner's no objection certificate is not required for providing electricity connection to an occupier of the premises, the learned Single Judge exercising contempt jurisdiction passed a detailed order on 29.08.2022, which is impugned in this appeal. The operative portion of that order is extracted below:-

"Looking to the facts and circumstances of the case, this Court directs the officials of the electricity department i.e. opposite party nos. 2, 3 and 4 and the police officials of police station Sector-24, Noida, Gautambudh Nagar i.e. opposite party nos. 5 and 6 to immediately provide the electricity connection to the applicant within a period of 72 hours from today.

Put up this case, as fresh, on 06.09.2022 and on that day the counsel appearing for the opposite party nos. 2, 3 and 4 shall apprise the Court about the progress of the matter.

Sri R.K. Mishra, learned Standing Counsel, who appears for the State authorities, shall inform the opposite party nos. 5 and 6 about this order within 24 hours.

Office shall handover a copy of this order upon Sri R.K. Mishra, learned Standing Counsel, free of charge.

On 06.09.2022 the Court shall consider the issue for framing of charges against the opposite party

no. 1 for obstructing the compliance of order of writ Court dated 29.06.2022. "

8. The contention of the learned counsel for the appellant is that the order passed by the Writ Court dated 29.06.2022 is ex parte in so far as the appellant is concerned; there is no adjudication either by the writ court or by any authority empowered by law that the respondent no.7 is a lawful occupier of the premises owned by the appellant in such circumstances, the question of occupation including its legality could not have been addressed by the contempt court; that the writ court only directed the respondent no.5 in the writ petition to pass an appropriate order for grant of electricity connection ignoring the objection of the landlord but there is no order to instal the connection even if its installation is resisted therefore, the contempt proceedings are not maintainable and the order impugned exceeds the jurisdiction vested in the contempt court. It is also argued that the 7th respondent is not in possession or occupation as the possession is with the appellant.

9. Miss. Archana Tyagi, holding brief of Sri Pankaj Tyagi, learned counsel for the respondent no.7, has raised a preliminary objection as regards the maintainability of this Special Appeal on the ground that as no punishment order was passed by the contempt court, an appeal would not be maintainable under Section 19 of the Contempt of Courts Act and since the the Contempt Court exercises jurisdiction quasi criminal in nature, a Special Appeal under Chapter VIII, Rule 5 of the High Court Rules would not be maintainable. On merits she submitted that whether the occupation of the respondent no.7 is lawful or not, a no objection certificate from the landlord or owner is not required for an electricity connection, which is a basic human need, therefore, the order of the learned single judge calls for no interference.

10. We have considered the rival submissions for the purposes of considering whether there is a prima facie case made out for interim protection as sought by the appellant. Before we examine whether a prima facie case is made out or not, it would be appropriate to

consider the preliminary objection raised with reference to the maintainability of special appeal against the order of contempt court. In *Midnapore People's Co-op. Bank and Others v. Chunilal Nanda and others* : (2006) 5 SCC 399, it has been held that where the contempt court has issued a direction, which is in the nature of exercise of powers of a Writ Court even though such direction is beyond the scope of the order passed by the Writ Court, the Special Appeal would be maintainable.

11. In the instant case, the writ court while disposing off Writ C No. 17882 of 2022 had not heard the respondent no.7 (the present appellant), who is the owner of the premises, and had also not recorded any finding whether the writ petitioner is currently in occupation of the premises. The writ court dealt with the issue whether a no objection certificate of the owner of the house is mandatory for supply of electricity to a person who is an occupier as a tenant or otherwise. The writ court by taking notice of certain clauses of the U.P. Electricity Supply Code, 2005 enabling supply of electricity even without no objection certificate of the owner, subject to fulfilment of certain conditions, had required the Executive Engineer, Electricity Urban Distribution Division (7) 33/11 KV Sub-Station, Sector-62, Noida to pass an appropriate order for grant of electricity connection in the name of the writ petitioner ignoring the objection of the landlord. The writ court's order does not at all deal with the issue whether the writ petitioner (Amit Kumar) is currently in occupation of the premises. Not only that, the writ court did not direct that even if there is a dispute with regard to occupation of the premises by the writ petitioner, the same would have to be overlooked and supply shall be made. There is also no direction that if the owner resists the electricity supply, the same would have to be made in all circumstances.

12. As the writ court had not decided that the writ petitioner was continuing in occupation of the premises owned by the present appellant and there is no direction that supply of electricity has to be made even if the owner had resisted such supply, prima facie, in our

view, the learned single judge while issuing direction that the opposite party no.1 (appellant herein) shall not obstruct the compliance of the order dated 29.06.2022 has in effect directed that the appellant shall not even raise an objection as to whether the respondent no.7 herein is an occupier of the premises. Ordinarily, if objection is raised to supply of electricity by a licensee to one's premises, or from over one's premises, under the proviso to clause (b) of Rule 3 of Works of Licensees Rules, 2006, framed under clause (e) of sub-section (2) of section 176 read with sub-section (2) of section 67 of the Electricity Act, 2003, the licensee is required to obtain permission in writing from the District Magistrate or the Commissioner of Police or any other officer authorised by the State Government, for carrying out the works. There is no indication in the order impugned whether such permission has been obtained.

13. In light of the discussion above, keeping in mind that an objection to supply of electricity to the premises has been taken by the owner and there exists a dispute with regard to possession/ occupation regarding which there appears no adjudication by the writ court and there is also no decision that the respondent no.7 i.e. the writ petitioner is in occupation of the disputed premises, prima facie, in our view, the order of the learned single judge travels beyond the direction of the writ court. Moreover, if the writ court's order was substantially complied by the electricity department by allotting connection an objection to the supply of electricity by a person, who is owner and in occupation, as claimed, would generate a fresh cause of action on which the aggrieved party can take recourse to appropriate legal remedies, as may be advised.

14. For all the reasons above, we are of the prima facie view that the direction, dated 29.08.2022, issued by the learned Single Judge requiring the opposite parties 2, 3 and 4 as well as the police officials to immediately provide electricity supply/ connection to the contempt applicant (respondent no.7) within 72 hours with a further direction that the opposite party no.1 (appellant herein) shall not raise any objection, travels beyond the writ court's direction dated 29.06.2022

and is, therefore, liable to be stayed and is hereby stayed. As, prima facie, we find that the connection to the contempt applicant has been sanctioned, as directed, but supply could not be made due to objections by opposite party no.7 (appellant herein), who claims himself to be owner and in occupation, the proceedings of Contempt Application (Civil) No. 4248 of 2022 are also also liable to be stayed and are accordingly stayed till the next date.

15. A short counter-affidavit has been filed today by Miss Archana Tyagi, which is taken on record.

16. Learned counsel for the appellant prays for and is allowed two weeks time to file rejoinder-affidavit.

17. List the appeal on 19th September, 2022.

Order Date :- 3.9.2022

Sunil Kr Tiwari

Court No. - 29

Case :- SPECIAL APPEAL DEFECTIVE No. - 395 of 2022

Appellant :- Daya Nand Sharma

Respondent :- State Of U.P. And 6 Others

Counsel for Appellant :- Shri Krishna Mishra,Ajay Mishra

Counsel for Respondent :- C.S.C.,Abhishek Srivastava,Pankaj Kumar Tyagi

Hon'ble Manoj Misra,J.

Hon'ble Vikas Budhwar,J.

List after three weeks.

Interim order, granted earlier, to continue till the next date of listing.

Order Date :- 19.9.2022

Sunil Kr Tiwari

Court No. - 29

Case :- SPECIAL APPEAL DEFECTIVE No. - 395 of 2022

Appellant :- Daya Nand Sharma

Respondent :- State Of U.P. And 6 Others

Counsel for Appellant :- Shri Krishna Mishra,Ajay Mishra

Counsel for Respondent :- C.S.C.,Abhishek Srivastava,Pankaj Kumar Tyagi,Ramendra Pratap Singh

Hon'ble Manoj Misra,J.

Hon'ble Vikas Budhwar,J.

List after three weeks.

Interim order, granted earlier, to continue till the next date of listing.

Order Date :- 10.10.2022

N.S.Rathour

Court No. - 29

Case :- SPECIAL APPEAL DEFECTIVE No. - 395 of 2022

Appellant :- Daya Nand Sharma

Respondent :- State Of U.P. And 6 Others

Counsel for Appellant :- Shri Krishna Mishra,Ajay Mishra

Counsel for Respondent :- C.S.C.,Abhishek Srivastava,Pankaj Kumar Tyagi,Ramendra Pratap Singh

Hon'ble Manoj Misra,J.

Hon'ble Vikas Budhwar,J.

List after three weeks.

Interim order, granted earlier, to continue till the next date of listing.

Order Date :- 31.10.2022

Sunil Kr Tiwari

Court No. - 29

Case :- SPECIAL APPEAL DEFECTIVE No. - 395 of 2022

Appellant :- Daya Nand Sharma

Respondent :- State Of U.P. And 6 Others

Counsel for Appellant :- Shri Krishna Mishra,Ajay Mishra

Counsel for Respondent :- C.S.C.,Abhishek Srivastava,Pankaj Kumar Tyagi,Ramendra Pratap Singh

Hon'ble Manoj Misra,J.

Hon'ble Vikas Budhwar,J.

Case is called out. Learned counsel for the appellant is present.
None is present for the respondents.

List again on 05.12.2022.

Interim order, granted earlier, to continue till the next date of listing.

Order Date :- 21.11.2022

AKShukla/-

Court No. - 29

Case :- SPECIAL APPEAL DEFECTIVE No. - 395 of 2022

Appellant :- Daya Nand Sharma

Respondent :- State Of U.P. And 6 Others

Counsel for Appellant :- Shri Krishna Mishra,Ajay Mishra

Counsel for Respondent :- C.S.C.,Abhishek Srivastava,Pankaj Kumar Tyagi,Ramendra Pratap Singh

Hon'ble Manoj Misra,J.

Hon'ble Vikas Budhwar,J.

Due to paucity of time, the matter could not be taken up.

List again on 10.01.2023.

The interim order, granted earlier, shall continue till the next date of listing.

Order Date :- 5.12.2022.

Rks.

Court No. - 29

Case :- SPECIAL APPEAL DEFECTIVE No. - 395 of 2022

Appellant :- Daya Nand Sharma

Respondent :- State Of U.P. And 6 Others

Counsel for Appellant :- Shri Krishna Mishra,Ajay Mishra

Counsel for Respondent :- C.S.C.,Abhishek Srivastava,Pankaj Kumar Tyagi,Ramendra Pratap Singh

Hon'ble Manoj Misra,J.

Hon'ble Vikas Budhwar,J.

Due to paucity of time, the matter could not be taken up today.

List after two weeks.

Interim order, granted earlier, to continue till the next date of listing.

Order Date :- 10.1.2023

AKShukla/-

Court No. - 29

Case :- SPECIAL APPEAL DEFECTIVE No. - 395 of 2022

Appellant :- Daya Nand Sharma

Respondent :- State Of U.P. And 6 Others

Counsel for Appellant :- Shri Krishna Mishra,Ajay Mishra

Counsel for Respondent :- C.S.C.,Abhishek Srivastava,Pankaj Kumar
Tyagi,Ramendra Pratap Singh

Hon'ble Manoj Misra,J.

Hon'ble Vikas Budhwar,J.

List this matter in the week commencing 20th February, 2023.

The interim order, granted earlier, shall continue till the next date of listing.

Order Date :- 24.1.2023.

Rks.

Court No. - 29

Case :- SPECIAL APPEAL DEFECTIVE No. - 395 of 2022

Appellant :- Daya Nand Sharma

Respondent :- State Of U.P. And 6 Others

Counsel for Appellant :- Shri Krishna Mishra, Ajay Mishra

Counsel for Respondent :- C.S.C., Abhishek Srivastava, Pankaj Kumar Tyagi, Ramendra Pratap Singh

Hon'ble Pritinker Diwaker, Acting Chief Justice

Hon'ble Saumitra Dayal Singh, J.

Learned counsel for the appellant prays for and is granted two weeks and no more time to file rejoinder affidavit.

List in week commencing 20.03.2023.

Subject to availability of time, the matter may be heard finally on the next date.

Interim order, granted earlier, is extended til the next of hearing.

Order Date :- 21.2.2023

Manish Himwan/P.Sri.

(S.D. Singh, J) (Pritinker Diwaker, ACJ)

Court No. - 39

Case :- SPECIAL APPEAL DEFECTIVE No. - 395 of 2022

Appellant :- Daya Nand Sharma

Respondent :- State Of U.P. And 6 Others

Counsel for Appellant :- Shri Krishna Mishra, Ajay Mishra

Counsel for Respondent :- C.S.C., Abhishek Srivastava, Pankaj Kumar Tyagi, Ramendra Pratap Singh

Hon'ble Mrs. Sunita Agarwal, J.

Hon'ble Vikas Budhwar, J.

In view of the order dated 03.09.2022 passed by this Court, office is directed to remove the defect and allot regular number to the appeal.

The present appeal is directed against the judgment and order dated 29.08.2022 passed by the contempt court directing the electricity department and police officials of Police Station Sector-24, NOIDA Gautambudh Nagar to immediately provide electricity connection to the contempt applicant within a period of 72 hours from the date of the order. The contempt applicant claims to be the tenant of the premises in question and with the said claim, he filed Writ C no.17882 of 2022 (Amit Kumar vs State of U.P and others) challenging the communication dated 30.05.2022 issued by the Executive Engineer, Electricity Urban Distribution Division-VII, 33/11 KV sub station, Sector 62 C, NOIDA, whereby he was asked to provide the consent of the landlord for granting electricity connection.

On submission of the learned counsel that the landlord of the premises has refused to give consent and objected for grant of electricity connection in the name of the petitioner, liberty was granted to the petitioner to comply with the condition of Clause 4.4 of the Electricity Supply Code, 2005 in furnishing the indemnity bond and fulfil all other necessary formalities subject to which the concerned authority was required to pass appropriate order in the matter of granting electricity connection in the name of the petitioner, ignoring the connection in the name of the landlord.

The contention of the appellant who is the landlord, is that the direction issued by this Court has wrongly been interpreted by the contempt court by issuing positive direction for grant of electricity connection without determining the claim of the contempt

applicant for such relief.

There is no dispute about the fact that the appellant herein is owner/landlord of the premise in question. It is demonstrated before us that a rent agreement dated 14.07.2021 had been executed for the basement of the premise in question in favour of one M/s Fitness 22 Gym through its proprietor Mr. Abhijeet Tanwar s/o Sh. Surendra Singh R/o R-33, Sector-12, NOIDA-201301 District Gautam Budh Nagar, U.P. The said agreement was for a period of 11 months w.e.f 16.06.2021 which expired on 15.05.2022.

It is demonstrated before us that a notice dated 20.04.2022 had been given by the appellant to M/s Fitness 22 Gym through its proprietor Abhijeet Tanwar, respondent no.7 herein namely Amit Kumar s/o Narendra Kumar to vacate the premise in question namely the basement in accordance with the terms and condition of the rent agreement or else the damages was required to be paid. It is contended by the learned counsel for the appellant that the person in whose occupation, the premise in question was under the rent agreement, had delivered physical possession of the same to the landlord/appellant herein on 16.06.2022. However, the respondent no.7 has unauthorisedly occupied the premises-in-question. He has illegally occupied the same and with a view to continue in unauthorised occupation, application was moved before the electricity department for grant of electricity connection in his name.

It further transpired that the respondent no.7 herein had filed an original suit no.112 of 2022 seeking permanent prohibitory injunction against the appellant herein which has been dismissed under Order 7 Rule 11(d) CPC.

An SCC suit no.612 of 2022 has been filed by the appellant herein before the Court, wherein respondent no.7 and M/s Fitness 22 Gym through its proprietor Abhijeet Singh have been impleaded as opposite parties.

An interim injunction order dated 30.11.2022 passed by the District Judge Gautambudh Nagar in Civil Appeal no.61 of 2022 filed by the respondent no.7 herein has been placed before us by the counsel appearing in his behalf to assert that the respondent no.7 herein has been granted protection by the Civil Court and the direction has been issued not to evict him from the tenanted premises.

It is an admitted fact of the matter that the SCC suit and the civil appeal arising out of original suit for injunction are pending before the competent court of law. This fact of the matter, it seems had not been brought before the writ court at the time of passing of the order dated 29.06.2022, as a result of which the contempt proceedings were initiated by respondent no.7.

Taking note of the above facts, we are of the considered opinion that a person of whose possession of the premises in question is not settled or termed as illegal, cannot claim electricity connection independent to the proceedings initiated by him.

The landlord cannot be said to be in error in refusing to give consent for grant of separate electricity connection in the name of respondent no.7.

Learned counsel for the respondent no.7 lastly submits that the landlord had taken security as an advance for an amount of Rs.10 lacs and it has not been refunded so far and as such the respondent no.7 cannot be evicted from the premise in question.

Be that as it may, the issue raised herein can very well be addressed by the competent court namely the SCC Court or the civil court.

It is open for the respondent no.7 to claim necessary relief in the pending appeal filed by him arising out of the suit for permanent prohibitory injunction filed against the appellant.

While setting side the directions issued by the contempt court in the order dated 29.08.2022 to the electricity department to grant electricity connection to respondent no.7 within 72 hours, we relegate the respondent no.7 to approach the civil court for redressal of his grievances.

It goes without saying that, in case, respondent no.7 seeks appropriate relief before the civil court, the order passed in the present appeal or the writ petition filed by him shall not come in his way.

The writ petition is **disposed of**.

Order Date :- 22.3.2023

Harshita